LIFEGUARD SERVICES AGREEMENT

CONTRACT NO.: 22-1656

THIS AGREEMENT is made this 16th day of February, 2023, between **WALTON COUNTY, FLORIDA**, a political subdivision of the State of Florida, whose address is 76 North Sixth Street, DeFuniak Springs, FL 32433, hereinafter referred to as the "County", and **SOUTH WALTON FIRE DISTRICT**, a Florida independent special district, whose address is 911 North County Highway 393, Santa Rosa Beach, FL 32459, hereinafter referred to as "SWFD".

WHEREAS, Walton County has devoted certain properties under its control to recreational purposes for the use and enjoyment of the general public and desires to provide beach safety and education services for the safety and protection of the citizens of and visitors to Walton County, and

WHEREAS, SWFD desires to provide beach safety and education services as described in the Scope of Services, and has the qualifications, experience, staff and resources to perform those services, including but not limited to advising beach and water users concerning surf conditions and safety issues and providing/coordinating rescue activities and emergency response; and

WHEREAS, the County, in accordance with the requirements of law and County policy, has determined that it would be in the best interest of the County to execute a contract with SWFD for the rendering of those services described in the Scope of Services.

NOW, THEREFORE, in consideration of the mutual covenants and agreements hereinafter contained, the parties hereto agree as follows:

SECTION 1. ENGAGEMENT OF SWFD. The County hereby agrees to engage SWFD, and SWFD hereby agrees to perform the services set forth in the Scope of Services.

SECTION 2. EMERGENCY MEDICAL SERVICES.
It is understood by the parties that as SWFD is the County's EMS provider to the areas included in this Agreement, SWFD's obligations are incorporated through that separate County EMS contract to include the area encompassing the ELEVEN (11) Public Regional Beach Access points with responding capabilities to public beach areas without lifeguard towers.

SECTION 3. SCOPE OF SERVICES. SWFD shall provide beach safety and education services in accordance with the Scope of Services set forth in **Exhibit A** attached hereto and incorporated herein by reference.

SWFD shall be responsible for procurement and maintenance of capital items (such as vehicles) and must adhere to SWFD surplus and or disposal procedures.

SECTION 4. THE COUNTY'S RESPONSIBILITY. Except as provided in the Scope of Services, the County's responsibilities are to furnish required information and services and render approvals and decisions as necessary for the orderly progress of SWFD's services. The County hereby designates the Tourism Director of Walton County (hereinafter the "Tourism Director") to act on the County's behalf with respect to the Scope of Services. The Tourism Director shall have complete authority to transmit instructions, receive information, interpret and define County policies and decisions with respect to materials, elements and systems pertinent to SWFD's services.

SECTION 5. TERM OF AGREEMENT. The term of this Agreement shall begin on March 1, 2023 and continue through February 28, 2028 and may renew for ONE (1) additional period of FIVE (5) years if said renewal is mutually agreed upon with a duly written instrument executed by both Parties, unless earlier terminated by the Board of County Commissioners. The parties both agree to notify each other in writing of their desire to renew this agreement for the additional FIVE (5) YEAR term on or before July 31, 2027.

SECTION 6. COMPENSATION.

A. 2023 Total Annual Compensation shall be in the amount of TWO MILLION, FIVE HUNDRED TWENTY THOUSAND AND 00/100THS DOLLARS ($2,520,000.00).

B. 2024 Total Annual compensation shall be in the amount of THREE MILLION, FIVE THOUSAND, FIVE HUNDRED AND 00/100THS DOLLARS ($3,005,500.00), the "Base Amount".

C. 2025-2027 Total Annual compensation shall be the Base Amount from the year immediately preceding PLUS a 4% increase.

SWFD agrees to provide advance notice of anticipated additional costs when possible. In no case shall additional costs not included in Section 6(A), (B), or (C) exceed $5000 in one calendar year without the prior written consent of County.

SWFD may submit to the County a request for adjustment to SWFD's annual compensation in the event additional maintenance or equipment costs are necessary in the performance of services, which are the subject of this Agreement. The burden of proving the fact of and the amount of such actual and reasonable financial impact upon SWFDs cost of operations shall rest entirely with SWFD. The burden of proof shall be by a preponderance of

the evidence, and once SWFD has met this burden, the County shall not withhold approval of said request.

SWFD shall invoice the County, in a form agreed upon by the County and SWFD, for all required payments due. Payment by the County shall be made in accordance with the Florida Prompt Payment Act. It is agreed that the 2023 – 2027 annual compensations will cover eleven (11) tower locations. The parties further agree that should any additional tower location be added, the first annual compensation would be increased by a base price set for 2023 at ONE HUNDRED NINETY EIGHT THOUSAND AND 00/100THS DOLLARS ($198,000.00) per additional tower location. The subsequent annual compensation would be increased by ONE HUNDRED SEVENTY TWO THOUSAND AND 00/100THS DOLLARS ($172,000.00) per additional tower location added to base amount plus a 4% increase for the subsequent years.

For example, if ONE (1) additional tower was placed in 2023, the price would be as listed above; ($198,000 in 2023, then in 2024, $172,000 plus 4% based on 2023 figures.) If ONE (1) additional tower was then placed in 2024, the price would be the listed base for the additional tower plus the calculation listed in the pricing terms above to establish base for the first and subsequent years; $198,000 plus 4% for 2023 applied in 2024, then $172,000 with adjusted base for 2023 and 2024 cumulatively applied for 2025.)

Payments for the recurring operations shall be in two (2) equal installments wherein the first payment shall be due and payable on March 1, 2023 and the second payment shall be due and payable on July 1, 2023, with the payment schedule repeating on these dates each subsequent year of the contract term. All financial obligations shall terminate on the final day of service or upon termination after written notification, and any accounts due will be paid in full in accordance with the Florida Prompt Payment Act §218.74, Florida Statutes.

SECTION 7. INSURANCE REQUIREMENTS. SWFD shall purchase and maintain through the Contract period, worker's compensation, comprehensive general liability (occurrence form), comprehensive automobile liability, and other insurance as is appropriate for the services being performed hereunder by SWFD, its employees, subcontractors, or agents. The amounts and types of worker's compensation, comprehensive general liability (occurrence form), and comprehensive automobile liability insurance shall conform to the following minimum requirements:

A. Worker's Compensation Coverage must apply for all employees and statutory limits must be in compliance with the applicable state and federal laws unless Contractor provides a current Florida Workers Compensation exemption certificate. In addition, the policy must include the following:

a. Employer's Liability with a minimum limit per accident in accordance with statutory requirements.

b. Notice of Cancellation and/or Restriction. The policy must be endorsed to provide the County with thirty (30) days written notice of cancellation and/or restriction.

B. Comprehensive General Liability coverage must include:

a. $1,000,000 combined limit per occurrence for bodily injury, personal injury, and property damage.

b. Contractual coverage applicable to this specific contract, including any hold harmless and/or indemnification agreement.

c. Additional Insured. The County is to be specifically included as an additional insured.

d. Notice of Cancellation and/or Restriction. The policy must be endorsed to provide the County with thirty (30) days written notice of cancellation and/or restriction.

C. Comprehensive Automobile Liability coverage must be afforded on a form no more restricted than the latest edition of the Comprehensive Automobile Liability Policy filed by the Insurance Services Office and must include:

a. $300,000 combined single limit per accident for bodily injury and property damage.

b. Owned vehicles.

c. Hired and Non-Owned vehicles.

d. Employee Non-Ownership.

e. Additional Insured. The County is to be specifically included as an additional insured.

f. Notice of Cancellation and/or Restriction. The policy must be endorsed to provide the County with thirty (30) days written notice of cancellation and/or restriction.

D. Professional Liability Coverage must include:

a. Minimum limits of $1,000,000 per occurrence and in the aggregate for claims of malpractice, negligence, error and omissions.

b. Notice of Cancellation and/or Restriction. The Policy must be endorsed to provide The County with thirty (30) days' prior notice of cancellation and/or restriction of coverage by changed exclusion.

E. Certificates of Insurance evidencing the insurance coverage specified in this Section shall be filed with the County. The Certificates of Insurance shall be filed with the County before this Agreement is deemed approved by the County. The required Certificates of Insurance not only shall name types of policies provided, but also shall refer specifically to this Agreement. All the policies of insurance so required of SWFD except workers compensation and professional liability insurance shall be endorsed to include as additional insured the County, its officers, employees, and agents to the extent of the County's interests arising from any contract agreement between the County and SWFD. If the initial insurance expires prior to completion of

the work, renewal Certificates of Insurance shall be furnished ten (10) days prior to the date of their expiration.

F. Insurance coverage shall be placed with insurers or self-insurance funds, satisfactory to the County, licensed to do business in the State of Florida and with a resident agent designated for the service of process. All insurers shall have an "A" policyholder's rating and a financial rating of at least Class V in accordance with the most current Best's rating. SWFD shall provide the County with financial information concerning any self insurance fund insuring SWFD. At the County's option, a Best's rating or Self-Insurance Fund financial information may be waived.

G. The purchase of any of the above-referenced insurance policies shall not release SWFD from any obligation, warranty or guarantee requisite under this Agreement.

SECTION 8. DOCUMENTS. The documents which comprise this Agreement between the County and SWFD are attached hereto and made a part hereof and consist of the following:

A. This Agreement;
B. The Scope of Services attached hereto as **Exhibit A;**
C. Any written amendments, modifications or Addenda to this Agreement;

SECTION 9. EQUAL OPPORTUNITY EMPLOYMENT. In connection with the work to be performed under this Agreement, SWFD agrees to comply with the applicable provisions of State and Federal Equal Employment Opportunity statutes and regulations.

SECTION 10. E-VERIFY. SWFD utilizes the U.S. Department of Homeland Security's E-Verify system to verify the employment eligibility of: (a) all persons employed by SWFD during the term of the Agreement to perform employment duties within Florida; and (b) all persons (including subcontractors) assigned by SWFD to perform work pursuant to the Agreement.

SECTION 11. PROHIBITION AGAINST CONTINGENCY FEES. SWFD warrants that it has not employed or retained any company or person, other than a bona fide employee working solely for SWFD or its attorney(s) to solicit or secure this Agreement and that SWFD has not paid or agreed to pay any person, company, corporation, individual or firm, other than a bona fide employee working solely for SWFD, any fee, commission, percentage, gift or any other consideration contingent upon or resulting from the making of this Agreement. For the breach or violation of this provision, the County shall have the right to terminate this Agreement without liability, and at its discretion, to deduct from the contract price, or otherwise recover, the full amount of such fee, commission, percentage, gift or consideration.

SECTION 12. TRUTH-IN-NEGOTIATIONS/PUBLIC ENTITY CRIMES AFFIDAVIT. SWFD certifies that wage rates and other factual unit costs supporting the compensation are accurate, complete, and current at the time of contracting. The original contract price and any additions thereto shall be adjusted to exclude any significant sums by which the County determines the contract price was increased due to inaccurate, incomplete, or non-current wage rates and other factual unit costs. SWFD represents that it has furnished a Public Entity Crimes Affidavit pursuant to Section 287.133, Florida Statutes.

SECTION 13. TERMINATION OF AGREEMENT BY THE COUNTY. This Agreement may be terminated by either party, with or without cause with SIXTY (60) days' prior written notice. If this Agreement is so terminated, SWFD shall be paid for all costs and services provided through the date of termination, pursuant to the terms and conditions of this Agreement. SWFD shall not be paid on account of loss of anticipated profits or revenue or other economic loss arising out of or resulting from the termination, and the County will not be responsible for any other obligations to SWFD

SECTION 14. PUBLIC ACCESS.

A. SWFD shall comply with the requirements of Florida's Public Records law. In accordance with Section 119.0701, Florida Statutes, SWFD shall (1) keep and maintain public records required by the public agency to perform the service; (2) upon request from the public agency's custodian of public records, provide the public agency with a copy of the requested records or allow the records to be inspected or copied within a reasonable time at a cost that does not exceed the cost provided under Florida's Public Records law or as otherwise provided by law; (3) ensure that public records that are exempt or confidential and exempt from public records disclosure requirements are not disclosed except as authorized by law for the duration of the contract term and following completion of this contract if SWFD does not transfer the records to the public agency; and (4) upon completion of the contract, transfer, at no cost, to the public agency all public records in possession of SWFD or keep and maintain public records required by the public agency to perform the service. If SWFD transfers all public records to the public agency upon completion of the contract, SWFD shall destroy any duplicate public records that are exempt or confidential and exempt from public records disclosure requirements. If SWFD keeps and maintains public records upon completion of this contract, SWFD shall meet all applicable requirements for retaining public records. All records stored electronically must be provided to the public agency, upon request from public agency's custodian of public records, in a format that is compatible with the information technology system of the public agency.

B. **IF SWFD HAS QUESTIONS REGARDING THE APPLICATION OF CHAPTER 119, FLORIDA STATUTES, TO SWFD'S DUTY TO PROVIDE PUBLIC RECORDS RELATING TO THIS AGREEMENT, SWFD SHALL CONTACT THE CUSTODIAN OF PUBLIC RECORDS AT:**

Genara Roop, Records Management Liaison Officer
161 E. Sloss Avenue
DeFuniak Springs, Florida 32433
850-892-8110
publicrecords@co.walton.fl.us

C. In the event the County must initiate litigation against SWFD in order to enforce compliance with Chapter 119, Florida Statutes, or in the event of litigation filed against the County because SWFD failed to provide access to public records responsive to a public record request, the County shall be entitled to recover all costs, including but not limited to reasonable attorneys' fees, costs of suit, witness fees, and expert witness fees expended as part of said litigation and any subsequent appeals.

SECTION 15. RECORDS. SWFD shall maintain records, and the County shall have inspection and audit rights as follows:

A. Maintenance of Records: SWFD shall maintain all financial and non-financial records and reports directly or indirectly related to the negotiation or performance of this Contract including supporting documentation for any service rates, expenses, research, or reports. Such records shall be maintained in compliance with applicable Florida Chapter 119, Florida Statutes regarding record keeping for government agencies and made available for inspection for a period of five (5) fiscal years after completion or termination of this Agreement.

B. Examination of Records: The County or its designated agent shall have the right to examine, in accordance with generally accepted governmental auditing standards, all records directly or indirectly related to this Contract. Such examination may be made only within five (5) fiscal years after completion or termination of this Agreement.

Records which relate to any litigation, appeals, or settlements of claims arising from performance under this Contract shall be made available until a final disposition has been made of such litigation, appeals, or claims.

SECTION 16. CONTROLLING LAW AND ATTORNEY FEES.

A. This Agreement is to be governed by the laws of the State of Florida. The venue for any litigation resulting out of this Agreement shall be in Walton County, Florida.

B. Should litigation be necessary to enforce any term or provision of this Agreement, or to collect any portion of the amount payable under this Agreement, then all reasonable litigation and collection expenses, witness fees, expert witness fees, court costs and reasonable attorneys' fees shall be paid to the prevailing party.

SECTION 17. SUCCESSORS AND ASSIGNS. The County and SWFD bind themselves, their partners, successors, assigns and legal representatives to the other party to this Agreement and to the partners, successors, assigns and legal representatives of such other party with respect to all covenants of this Agreement. Neither the County nor SWFD shall assign or transfer any interest in this Agreement without the written consent of the other.

SECTION 18. EXTENT OF AGREEMENT.

A. This Agreement represents the entire and integrated agreement between the County and SWFD and supersedes all prior negotiations, representations or agreement, either written or oral.

B. This Agreement may only be amended, supplemented, modified, changed or canceled by the agreement of both parties with a duly executed written instrument.

C. This Agreement's Scope of Services may be amended, supplemented, changed or canceled by the agreement of both parties by a duly executed written instrument.

SECTION 19. INDEMNIFICATION OF THE COUNTY. It is agreed by both parties that neither assumes any liability for the acts, omissions, and negligence of the other. Both parties shall indemnify and hold the other harmless from all claims, damages, losses, and expenses arising out of or resulting from the performance of their respective operations under this agreement. However, nothing contained herein shall constitute a waiver by the County or SWFD of its sovereign immunity or the limitations set forth in Section 768.28, Florida Statutes.

SECTION 20. INDEPENDENT CONTRACTOR. Neither the County nor any of its employees shall have any control over the conduct of SWFD or any of SWFD's employees, except as herein set forth, and SWFD expressly warrants not to represent at any time or in any manner that SWFD or any of SWFD's agents, servants or employees are in any manner agents, servants or employees of the County. It is understood and agreed that SWFD is, and shall at all times remain as to the County, a wholly independent Contractor and that SWFD's obligations to the County are solely as prescribed by this Agreement.

SECTION 21. SEVERABILITY. In the event any one or more of the provisions contained in this Agreement shall for any reason be held invalid, illegal, or unenforceable in any respect, the invalidity, illegality, or unenforceability shall not affect any other provision and this Agreement shall be construed as if the invalid, illegal, or unenforceable provision had never been contained in it.

SECTION 22. NOTICES. Any notices to be given under this Contract shall be given by United States Certified Mail with Return Receipt Requested or electronic mail, addressed to the Parties at their addresses stated below. If providing notice via electronic mail, it shall be deemed that notice was provided on the date said electronic mail was received. The Party providing notice by electronic mail shall confirm that the electronic mail was received by the other Party.

For County:

Walton County Board of County Commissioners

c/o Walton County Administration

76 North 6th Street

DeFuniak Springs, Florida 32433

850-892-8155

contracts@co.walton.fl.us

For SWFD:

South Walton Fire District

Attn: Ryan Crawford, Fire Chief

911 North County Highway 393

Santa Rosa Beach, Florida 32459

850-267-1298

rcrawford@swfd.org

Either Party changing name or address shall notify the other Party to which Notices shall be sent by providing the same with at least five (5) days' written notice to the address set forth herein.

Walton County's performance and obligation to pay under this Agreement is contingent upon an annual appropriation by the Board of County Commissioners.

[REMAINDER OF PAGE LEFT INTENTIONALLY BLANK]

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the day and year first written above.

ATTEST:

Alex Alford, Clerk of Circuit Court
And County Comptroller

WALTON COUNTY, FLORIDA

By: _____
Daniel "Danny" Glidewell, Chair
Board of County Commissioners

Date: 2-16-23

Approved For Form:

_____
Clay B. Adkinson, Acting County Attorney
Walton County, Florida

SOUTH WALTON FIRE DISTRICT

By: _____
Maurice Gilbert, Chair
Board of Fire Commissioners of South Walton Fire District

Date: FEB 13, 2023

STATE OF FLORIDA
COUNTY OF WALTON

Acknowledged and subscribed before me the undersigned notary on February 13, 2023, by Maurice Gilbert, the Chairman of SWFD Board of Fire Commissioners, with legal corporate authority, and who is known to me or has produced identification of: _____

_____
Notary Public

ROBBIE S. LUND
MY COMMISSION # HH30702
EXPIRES: September 13, 2024

Drafted by the Office of the Walton County Attorney and Rene Youell, Attorney for SWFD.
Approved by the Board of County Commissioners January 26, 2023.

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IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the day and year first written above.

ATTEST:

Alex Alford, Clerk of Circuit Court
And County Comptroller

WALTON COUNTY, FLORIDA

By: _____
Daniel "Danny" Glidewell, Chair
Board of County Commissioners

Date: 2-16-23

Approved For Form:

DocuSigned by:
_____
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Clay B. Adkinson, Acting County Attorney
Walton County, Florida

SOUTH WALTON FIRE DISTRICT

By: _____
Maurice Gilbert, Chair
Board of Fire Commissioners of South Walton Fire District

Date: FEB 13, 2023

STATE OF FLORIDA
COUNTY OF WALTON

Acknowledged and subscribed before me the undersigned notary on February 13, 2023, by Maurice Gilbert, the Chairman of SWFD Board of Fire Commissioners, with legal corporate authority, and who is known to me or has produced identification of: _____

_____
Notary Public

ROBBIE S. LUND
MY COMMISSION # HH30702
EXPIRES: September 13, 2024

Drafted by the Office of the Walton County Attorney and Rene Youell, Attorney for SWFD.
Approved by the Board of County Commissioners January 26, 2023.

EXHIBIT A
SCOPE OF SERVICES

The SWFD shall supply beach safety services including, but not limited to, LIFE GUARD services, beach safety education, patrolling and supervising beach and Gulf areas from an assigned lifeguard location, patrol vehicle, or vessel; performing rescue and accident prevention activities at the beach and in the open water environment; monitoring and advising beach and water users of local, state, and federal laws, rules, and ordinances; providing and coordinating emergency medical and water-rescue activities and emergency response. Priority duties include:

- Assessing the prevailing surf conditions at a minimum of twice daily, determining the appropriate beach safety flag based on that assessment and change the beach flags to reflect the appropriate color.
- Implementing beach safety management plans to best minimize risk to the public.
- Closely monitoring all aquatic users within designated areas of supervision.
- Maintaining a proactive approach to beach and water safety by advising the public, when necessary, of dangers and providing advice to best minimize risk.
- Educating the public on beach safety and the beach flag system using internally generated media and social media to coordinate with the Visit South Walton beach safety campaign.
- Carrying out the rescue of any person(s) in difficulty and informing other services (patrol members/SWFD/ WCSO) if and when backup is required.
- Carrying out other duties such as Emergency Medical Response and Minor First Aid, Dry-Land and In-Water Missing Person Searches, and Safety Interventions and Preventive Actions as required to prevent/treat death or injury, minimizing risk, and maintaining public safety.
- Providing written reports of incidents and Daily Activity Reports (DAR's) for required beach statistics and verbally notifying, as timely as possible, the Tourism Director or identified designee should a drowning or a serious near drowning incident occur.
- Notify the Walton County Public Information Officer of media requests related to the Beach Safety Program This does not restrict SWFD from its normal media activity or emergency notification to the public regarding Beach Safety and Education.
- Providing established Standard Operating Guidelines for the safe and efficient operations of the beach safety and education service.
- Providing, maintaining, and monitoring the condition of lifeguard and all operational and capital equipment and reporting deficiencies as necessary.

- Undertaking scheduled cleaning and maintenance of surf rescue equipment and facilities on a daily, weekly and monthly basis.
- Providing routine maintenance and as-needed repairs of the all-terrain vehicles (ATV's) so as to ensure a maximum number of ATVs are available for deployment along the coastline at appropriate operational times daily during the months of March through October, or as lighting, weather, and visitor density requires.
- Managing beach wheelchair program, providing beach wheelchairs at designated locations.

REQUIREMENTS:
SWFD shall meet the United States Lifesaving Association's (USLA) guidelines for an open water lifeguard agency.

SWFD shall provide personnel training and management in addition to maintaining equipment and facilities it owns or controls for this service. Employees who are acting as lifeguards under this agreement shall be trained to and meet the USLA Open Water Lifeguard Standards.

SWFD will supply lifeguard coverage within sight distance of the lifeguard tower at the following eleven (11) Public Regional Access points, as well as any additional locations established by the County:

1. Inlet Beach, 438 S. Orange Street—Access 2B, Inlet Beach
2. Santa Clara, 3468 E Co Hwy 30-A, Santa Rosa Beach
3. Van Ness Butler Jr, 1931 E. Co. Hwy 30-A, Santa Rosa Beach
4. Grayton Beach, 288 Garfield St, Santa Rosa Beach
5. Blue Mountain Beach, 2365 S. Co. Hwy 83, Santa Rosa Beach
6. Gulfview Heights, 186 Gulfview Heights St, Santa Rosa Beach
7. Ed Walline, 4447 W. Co. Hwy 30-A, Santa Rosa Beach
8. Ft. Panic, 5753 W. Co. Hwy 30-A, Santa Rosa Beach
9. Dune Allen, 5999 W. Co. Hwy 30-A Santa Rosa Beach
10. Scenic Gulf, 907 Scenic Gulf Drive, Miramar Beach
11. Miramar Beach, 2375 Scenic Gulf Drive, Miramar Beach

"Within sight distance" of the lifeguard tower shall be defined as **not more than TWO HUNDRED (200) meters of linear shoreline with not more than a FIFTY (50) meter bathing limit.**

Peak season lifeguard services shall commence on March 1st and shall continue through October 31st. SWFD shall supply full lifeguard staffing at and/or between each of the previous listed regional access points from 10:00 a.m. until 6:00 p.m. daily, or as lighting, weather, and visitor density requires. For example, providing a tiered staffing model which provides for greater number of hours covered daily beginning at 9:00 A.M. and ending at 7:00 P.M. or later to cover daylight hours during the busiest portions of the season.

Shoulder season lifeguard services shall commence on November 1st and shall continue through February 28th, SWFD shall supply reduced lifeguard staffing (roaming coverage is appropriate, with a minimum of 5 (five) staffers) at and between the previously listed regional access points from 10:00 a.m. until 6:00 p.m. daily, or as lighting, weather, and visitor density requires.

From March 1 to October 31, Lifeguards will mobilize and rove between eleven (11) towers via all-terrain vehicles (ATVs), as demand, equipment maintenance, and staffing coverage allows. At no time shall a tower be unscheduled or unstaffed ("within sight distance"), during the hours of coverage from March 1 to October 31. Exceptions to this requirement are during active emergency responses, rescues when one or more lifeguards are in the water, providing roving coverage for the areas between closest adjacent towers during incidental staffing shortages, and during emergency beach evacuation.

The SWFD shall supply lifeguard staffing at each of the previous listed locations from 10:00 a.m. until 6:00 p.m. daily, or as lighting, weather, and visitor density requires, with an additional half (.5) hour allowance for shift preparation and conclusion. Limited staff may be scheduled both prior to the season and after the season to address mobilization and de-mobilization. For example, providing a tiered staffing model which provides for greater number of hours covered daily beginning at 9:00 A.M. and ending at 7:00 P.M. or later to cover daylight hours during the busiest portions of the season.

SWFD shall ensure adequate staffing to meet educational, preventive, and response coverage at all times during the contract term. The number of lifeguards needed to adequately staff is at the determination of SWFD. Standard staffing levels are one (1) lifeguard per tower location, with supervisory patrols providing relief as scheduling allows for adequate coverage. During peak periods or special demands, additional lifeguards may be activated at the discretion of SWFD.

All lifeguards employed by SWFD pursuant hereto must be at least 16 years of age, be able to complete an approved United States Lifesaving Association Open Water Lifeguard training course or equivalent, have participated in first responder training and possess current CPR certification through the American Safety and Health Institute (ASHI) or equivalent. Any lifeguard hired under the age of 17 shall be assigned to work with a senior lifeguard only and not allowed to work alone.

SWFD shall furnish and be responsible for the maintenance of the following equipment at each of the Regional Access Points:

- Lifeguard Tower
- First Aid Kit to include a pocket mask and rubber medical gloves
- Buoys
- Rescue Type Surfboard

- Lifeguard Identification
- Flag Information Signs
- A radio for each tower capable of communicating with South Walton Fire dispatch center.
- All-Terrain Vehicles will be deployed along the coastline, except as otherwise addressed in this Agreement.

SWFD shall be responsible for assuring at all times while lifeguards are on duty, they are either positioned on the lifeguard tower or patrolling the beach area adjacent to each duty location. SWFD and its employees will take due diligence to observe the area of their responsibility/coverage for swimmers or beach goers in distress and will make reasonable efforts to perform first responder rescue and assistance to such persons. SWFD, the Walton County Sheriff's Office, Walton County Board of County Commissioners, and Walton County Emergency Management shall have the authority to close the beach for any and all use in the interest of public safety, pursuant to Walton County Ordinance Section 22-54(h) (2). When deemed necessary, SWFD shall have the ability to restrict the use of the Gulf of Mexico (fly double red flags) for swimming and other recreational uses and shall immediately advise the Walton County Sheriff's Office when such a restriction occurs.

SWFD shall require that all lifeguards and staff be dressed in neat and orderly uniforms identifying them as lifeguard staff.

SWFD shall be responsible for assuring that all lifeguards and staff employed pursuant hereto shall, while on duty, obey the following minimum rules and regulations prohibiting:

- Being under the influence of alcohol, including the consumption of alcohol or presence of alcohol on the breath while on duty.
- Being under the influence of a controlled substance, including the manufacture, distribution, dispensation or possession of a controlled substance while on duty.
- Conduct unbecoming a lifeguard.
- Immoral conduct while on duty.
- Neglect of duty.
- Violation of any criminal law.
- Sleeping while on duty.
- Disobedience of orders from SWFD.
- Laziness.
- Disorderly conduct while on or off duty.
- Leaving tower without being properly relieved, except in case of an emergency or due to inclement weather. "Inclement weather" shall be defined as the presence of lightning or waterspouts in the area.
- Willful maltreatment of the public. Lifeguards shall be courteous when dealing with the public.

- Receiving bribes of money, valuables, fees, rewards, or gifts for services rendered in connection with any official duty.
- Distribution of promotional materials for business interests other than Beach Safety related or approved agency coordinated materials.

SWFD shall be responsible for taking all actions reasonably necessary to ensure that the beaches in its contractual areas are safe for normal beach activities and shall report to the TDC within a reasonable time under the circumstances any condition which might require TDC action. SWFD must report all drowning incidents to the Tourism Director or representative immediately following occurrence.

Whenever referring to the Lifeguard or Junior Lifeguard Program, either written or verbally, the Tourism Department will have the ability to include brand messaging or logos with the ability to approve all such communication in advance. The entire Beach Safety / Lifeguard Program will carry the Visit South Walton brand, however it is acknowledged that the Lifeguard program and the Junior Lifeguard program are programs owned and operated by SWFD. For example, it is the Walton County Lifeguard Program and South Walton Junior Lifeguard Program.

SWFD shall establish branded key messaging with the assistance of Visit South Walton's mission and make it a key part of the lifeguard training to educate beach goers about the destination and the beach safety campaign.

SWFD shall establish and maintain a Junior Lifeguard Program. On or before the beginning of each year of the Agreement, SWFD will submit the program plan for review regarding execution including, but not limited to, schedule, orientation, events, messaging, etc.

SWFD will communicate and work with all beach related programs in place such as South Walton Turtle Watch Group and Walton County Code Compliance with regard to any issues affecting the beach and visitors.

SWFD will, by the FIFTEENTH (15TH) of the following month, submit to the Tourism Department monthly reports regarding all incidents and activities.

The County reserves the option to increase or decrease the number of lifeguard stands based upon the cost delineated in SECTION 6 of this Agreement.